NG TO THE INTERNATIONAL

CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973 RESOLUTION MEPC.57(33) (adopted on 30 October 1992)

CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973

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RESOLUTION MEPC.58(33) (adopted on 30 October 1992)

CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973RESOLUTION HEPC. 58(33)

(adopted on 30 Oc tober 1992)

TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION

OF POLLUTION FROM SHIPS, 1973

(Revised Annex III)

THE MARINE ENVIRONMENT PROTECTION COMMITTEE,

RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the function of the Committee conferred upon it by international conventions for the prevent ion and con trol of marine pollution,

NOTING articl e 1 6 of the International Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1973 Convention") and article VI of the Pro tocol of 1978 relating to the 1973 Convention (hereinafter referred to as th e >11978 Protocol") which together specify the amendment procedure of the 1978 Protocol and confer upon the appropriate body of the Organization the function of considering and adopting

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(hereinafter referred to as th e >11978 Protocol") which together specify the amendment procedure of the 1978 Protocol and confer upon the appropriate body of the Organization the function of considering and adopting

1973 Convention, as modified by the 1978 Protocol (HARPOL 73/78),

RECALLING ALSO that the Committee adopted rea olu tion HEPC.3S(27) on implementation of Annex III of MARPOL 73/78 by which it ia atated, inter alia, that the revised provisions of Annex III can be treated as equivalent to the existing provisions and hence nothing in HARPOL 73/78 will prevent Parties to Annex III from givi ng effect to the revis ed provisions of Annex III without awaiting the formal entry into force of the revis ed provisions,

RECALLING FURTHER that the Committee decided to commence action to amend Annex III to HARPOL 73/78 in ac~ordance with arti cle 16 of HARPOL 73/78, immediatel y upon the entry into for ce,

NOTING ALSO that the existing provisions of Annex III of HARPOL 73/78 already came into fo~ce an 1 July 1992,

HAVING CONSIDERED, the

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immediatel y upon the entry into for ce,

NOTING ALSO that the existing provisions of Annex III of HARPOL 73/78 already came into fo~ce an 1 July 1992,

HAVING CONSIDERED, the

we~e agreed at its twenty-sixth session, modified at its thirtieth and

thirty-first sessions and circulated in accordance with article 16(2)(a) of
the 1973 Convention,
1. ADOPTS in accordance with article 16(2)(d) of the 1973 Convention
annex to the present resolution;
RESOLUTION MEPC.58(33) (adopted on 30 October 1992)
CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 2 -
2. DETERMINES, i n accordance with article 16(2)(£)(iii) of the
1973 Convention , that the amendments shall be deemed to have been accepted
on 30 August 1993, unless, prior to that date, not less than one third of the
Parties or the Parties, the co mbined merchant fleets of which constitute not
less than fifty per cent of the gross tonnage of the worl d's merchant fleet.
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on 30 August 1993, unless, prior to that date, not less than one third of the
Parties or the Parties, the co mbined merchant fleets of which constitute not
less than fifty per cent of the gross tonnage of the worl d's merchant fleet.
have communic ated to the Organization their objections to the amendments;
3. INVITES the Parties to note that, in accordance .... ith article 16(2)(g)(ii)
of the 1973 Convention, the amendments shalt enter into for ce on 28 February 1994
in accordance with paragraph 2 above;
4. REQUESTS the Secret ary- General, in conformity with article 16{Z)(e)
of the 1973 Convention, to transmit to all Parties to Annex III of the
1978 Protocol certified cop ies of the pre sent resolution and the text of
the amendments contained in the annex;
5. REQUESTS FURTHER the Secretary-General to transmit to the Members of the
Organiza tion whic h are not Parties to Annex III of the 1978 Protocol co